FULL MAINTENANCE LEASE AGREEMENT

Agreement reference AF-TEST-0001 · prepared 13 October 2026

1. THE LESSOR

Name	Test Asset Lender (Pty) Ltd
Registration number	2000/000000/07
NCR registration	NCRCP00000
Registered office	1 Test Street, Testville, 0001

2. THE LESSEE

Name	TEST Earthmoving (Pty) Ltd
Type	Company (Pty) Ltd
Registration number	2099/000001/07
Trading as	TEST Plant
VAT number	4999999999
Address	2 Test Road, Testburg, Gauteng, 0002

3. THE GOODS (OWNED BY THE LESSOR THROUGHOUT)

Class	Excavator
Make and model	TESTMAKE EX-200
Year	2026
Serial / PIN	TESTSERIAL0001
VIN	TEST0000000000001
Engine number	TESTENGINE0001

4. THE SUPPLIER

Supplier	TEST Plant Sales (Pty) Ltd
Registration number	2099/000002/07
VAT number	4888888888

5. RENTALS

Term	36 months, 31 December 2026 to 31 December 2029
Rentals	Monthly in arrears
Base monthly rental excl. VAT	R 39,651.05
Annual escalation of the rental	8.00%
Contract rate (prices the rental)	Prime plus 1.00%, linked to Prime (Prime of 10.75% effective 29 May 2026): 11.75% a year (nominal)
VAT	Charged on every rental at the rate in force (15.00% at commencement)
Total rentals excl. VAT	R 1,544,678.20
Total maintenance excl. VAT	R 172,758.12
Total VAT	R 257,615.56

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Total payable incl. VAT	R 1,975,051.88
Early-termination penalty	10.00% of the present value of the rentals outstanding (clause 9.10)
Default interest on arrears	Contract rate plus 2.00% a year
Collection fee per missed rental	R 450.00

6. RENTAL SCHEDULE

No.	Due date	Rental excl. VAT	Maintenance	VAT	Total incl. VAT
1	31 January 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
2	28 February 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
3	31 March 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
4	30 April 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
5	31 May 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
6	30 June 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
7	31 July 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
8	31 August 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
9	30 September 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
10	31 October 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
11	30 November 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
12	31 December 2027	R 39,651.05	R 4,500.00	R 6,622.66	R 50,773.71
13	31 January 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
14	29 February 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
15	31 March 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
16	30 April 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
17	31 May 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
18	30 June 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
19	31 July 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
20	31 August 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
21	30 September 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
22	31 October 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
23	30 November 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
24	31 December 2028	R 42,823.13	R 4,792.50	R 7,142.35	R 54,757.98
25	31 January 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
26	28 February 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
27	31 March 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
28	30 April 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
29	31 May 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
30	30 June 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
31	31 July 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
32	31 August 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
33	30 September 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
34	31 October 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
35	30 November 2029	R 46,248.98	R 5,104.01	R 7,702.95	R 59,055.94
36	31 December 2029	R 46,249.26	R 5,104.01	R 7,702.99	R 59,056.26

7. ANNEXURE A — MAINTENANCE AND USAGE

Monthly maintenance excl. VAT	R 4,500.00
Annual escalation of maintenance	6.50%
Maintenance fund	At the end of the term a surplus is refunded to the lessee and a deficit is invoiced to the lessee
Contracted usage	1 500 hours a year
Excess-usage charge excl. VAT	R 350.00 per hour above the contracted usage, billed once at the end of the term

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8. CONSUMER PROTECTION ACT

The Consumer Protection Act, 2008 does not apply to this lease: the lessee is a juristic person at or above the threshold (section 5(2)(b)).

9. TERMS AND CONDITIONS

9.1 Lease of the goods; ownership remains with the lessor

Test Asset Lender (Pty) Ltd ("the lessor") lets to TEST Earthmoving (Pty) Ltd ("the lessee") the goods described in section 3 ("the goods") for the term in section 5, which starts on the commencement date, 31 December 2026, and ends on 31 December 2029, on the terms of this agreement. Sections 1 to 8 form part of these terms.

The goods remain the property of the lessor throughout. Nothing in this agreement transfers ownership to the lessee: the lessee becomes the owner only if it buys the goods at their market value under clause 9.9(c). The lessee may not sell, let, lend, pledge or encumber the goods, or part with possession of them.

Before the goods are brought onto premises the lessee does not own, the lessee must tell the owner of those premises in writing that the goods belong to the lessor, and must give the lessor a copy of that notice on request. If anyone attaches or claims the goods, the lessee must tell that person that the lessor owns them, and tell the lessor at once.

A registered vehicle is registered in the lessor's name as owner and titleholder. The lessee pays the licence and registration fees as they fall due and is liable for every traffic fine and toll incurred while the goods are in its possession; the lessor may nominate the lessee, or its driver, as the person responsible for a fine.

9.2 Delivery, acceptance and risk

The lessee chose the goods and the supplier named in section 4. The supplier delivers the goods to the lessee on the lessor's behalf. On delivery the lessee inspects the goods and signs a delivery and acceptance certificate, which confirms that the goods described in section 3 were delivered; the lessor then pays the supplier. The lessee must not sign the certificate before the goods have been delivered.

The lessor gives no warranty about the condition, quality or fitness for purpose of the goods, and is not liable for a delay in delivery or for a defect, except where caused by its own gross negligence or wilful misconduct. The lessor cedes to the lessee, for the term, its rights against the supplier and the manufacturer under their warranties, so that the lessee may enforce them. A defect in the goods does not suspend the rentals.

From delivery until the goods are returned to the lessor, the lessee bears the risk of the goods being lost, stolen, damaged or destroyed from any cause other than the lessor's own gross negligence. A loss does not end the lessee's obligation to pay the rentals, except as clause 9.5 provides for goods stolen or written off.

9.3 Rentals, escalation and changes to the contract rate

The lessee pays the rentals in section 6 monthly in arrears, on their due dates, by debit order or electronic transfer into the account the lessor names in writing, without deduction or set-off. A payment counts only once the lessor receives it in cleared funds.

The rental increases by 8.00% on each anniversary of the commencement date; the rentals in section 6 already include these increases.

The rentals are priced at the contract rate in section 5, which is linked to the Prime rate. When that reference rate changes, the lessor recalculates the rentals not yet invoiced that fall due at least 14 days after the recalculation, at the new contract rate (the new reference rate with the same margin). The term and the number of rentals do not change, and neither does the maintenance part of a rental; a rental already invoiced never changes. The lessor tells the lessee the new rentals in writing before the first changed rental falls due.

9.4 Tax invoices and VAT

Each rental is a separate supply. The lessor issues a tax invoice for each rental on the earlier of its due date and the day the lessor receives payment of it, and charges VAT on the rental at the rate in force at that time (section 5 shows the rate at commencement).

If the VAT rate changes, the rentals change by the difference in VAT, as section 67 of the Value-Added Tax Act, 1991 allows. Every other amount under this agreement (an end-of-term, purchase or termination amount) is invoiced on its own tax invoice, with VAT where that Act requires it.

9.5 Insurance of the goods

From delivery until the goods are returned, the lessee must keep the goods insured with an insurer of its choice registered under the Insurance Act, 2017, against loss, theft, damage and destruction from any cause for their full replacement value, and against liability to third parties arising from their use. The policy must record the lessor's interest as owner and first loss

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payee, and require the insurer to tell the lessor before the cover lapses or is cancelled. The lessee pays every premium and excess and gives the lessor proof of cover on request. If the lessee does not insure the goods, the lessor may insure them and recover the premium from the lessee on demand.

The lessee reports any loss or damage to the lessor and the insurer within 24 hours, and a theft or hijacking also to the South African Police Service, and does nothing that could void the cover. Insurance proceeds for repairable damage are used to repair the goods.

If the goods are stolen and not recovered, or written off, the lease ends on the date the theft is confirmed as an unrecovered total loss or the goods are written off, recorded with supporting evidence. The lessee then pays the lessor the arrears and the present value on that day of the rentals (excl. VAT and maintenance) that would have fallen due after it, discounted at the contract rate, without any penalty, and the insurance proceeds actually received, including later receipts, are credited through the receipt ledger against that amount; any excess is recorded for reconciliation and refund to the entitled party. Termination and the valuation date do not depend on insurer settlement or a physical return or inspection of stolen or destroyed goods.

9.6 Use, care and location of the goods

The lessee must: use the goods carefully, for its business, within their rated capacity and according to the manufacturer's instructions; have them operated only by competent operators who hold every licence and certificate the law requires; keep them in the Republic of South Africa, and not take them across its borders without the lessor's written consent; tell the lessor in writing where the goods are kept and of any change; comply with every law that applies to their possession and use; and present them for the maintenance the lessor arranges under clause 9.16.

Apart from fair wear and tear (clause 9.8), the lessee must keep the goods in the order and condition in which they were delivered. It may not alter them or add to them without the lessor's written consent; a part or accessory fitted to the goods becomes the lessor's property without compensation unless it can be removed without damage and is removed before the goods are returned. The lessor or its agent may inspect the goods at any reasonable time on reasonable notice.

The lessee indemnifies the lessor against every claim by any person for loss, damage, injury or death arising from the possession, use or operation of the goods during the term, except where caused by the lessor's gross negligence or wilful misconduct.

9.7 Contracted usage and excess-usage charges

The contracted usage is 1 500 hours a year (section 7), pro rata over the months the lease runs. At the end of the term the lessor charges, once, for the usage above it at R 350.00 per hour excl. VAT, plus VAT. The excess is the final reading less the reading at commencement, less the contracted usage multiplied by the number of months for which rentals fell due and divided by 12. An extension adds months and an early termination ends them. The charge is on the end-of-term tax invoice (clause 9.8). Using less than the contracted usage earns no credit.

The lessee must keep the hour meter working and must not disconnect, alter or tamper with it. It may record readings through the lessor's portal, and must tell the lessor at once if the meter fails or is replaced and have it repaired. The lessor may also take readings when it inspects the goods. No reading may be lower than an earlier one. The final reading is taken at the end-of-term inspection.

9.8 Return of the goods and the end-of-term inspection

When the lease ends (on expiry, at the end of an extension, on early termination or on cancellation), unless the lessee buys the goods under clause 9.9(c), the lessee must at its own cost return the goods, with their keys, manuals, accessories, service records and registration documents, clean and in good working order apart from fair wear and tear, to the place in the Republic the lessor reasonably names. Until the goods are returned the lessee remains bound by this agreement, including clauses 9.2 and 9.5.

The lessor inspects the goods on or after the day the lease ends. Its inspection report records their condition, each item of damage with its assessed cost of repair excl. VAT, and the final meter reading. The lessee may attend the inspection and receives a copy of the report.

"Fair wear and tear" is the deterioration that results from normal use of the goods for their purpose, within the contracted usage, with the care and maintenance this agreement requires. It does not include accident or impact damage, missing or broken parts or glass, damage from misuse, overloading or neglect, unauthorised alterations, or damage the insurance under clause 9.5 covers or should have covered.

The lessor issues one end-of-term tax invoice for the excess usage (clause 9.7), the assessed damage, any maintenance fund deficit (clause 9.16) and VAT. The lessee pays it within 7 days of the invoice date. The lessee may object to an item in writing, with reasons, within 10 business days of receiving the report; the lessor considers the objection in good faith and, if it upholds it, issues a credit note. An objection does not suspend payment of the items not in dispute.

9.9 End-of-term options: return, extension or purchase at market value

From 6 months before the last rental falls due, the lessee may choose one of the options below for the end of the term, through the lessor's portal or by written notice to the lessor. The choice is final once the lessor records it.

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(a) Return. The lessee returns the goods under clause 9.8 when the term ends.

(b) Extension month to month. The lease continues after 31 December 2029 from month to month, on the same terms, at the last rental and maintenance in section 6, payable on the same day of each month. Either party may end the extension by written notice; it then ends on the first rental date at least one month after the notice (and not before the end of the period already invoiced), and the goods are returned under clause 9.8. A lease in default is not extended.

(c) Purchase at market value. The lessor sells the goods to the lessee at a price not less than their market value: the highest current valuation of the goods by an independent assessor or dealer, dated within the period the lessor's valuation policy sets before the sale. The price is not fixed in this agreement, and nothing in this agreement obliges either party to buy or sell the goods at any other price. Once the term has ended the lessor issues a tax invoice for the price plus VAT, which the lessee pays within 7 days. Ownership passes, and the lessor signs the change of registration of a registered vehicle, only once the price and everything else owing under this agreement have been paid. The goods are sold in the condition they are in at the end of the term, which the lessee knows, without any warranty by the lessor (voetstoots).

If the lessee has made no choice by the expiry date, it must return the goods on that date under clause 9.8. Until it does, the lessor may by written notice treat the lease as extended under (b) from the expiry date.

9.10 Early termination

The lessee may end the lease before the end of the term only with the lessor's agreement, by asking for the lessor's early-termination quote and accepting it within its validity. The termination date is the day the lessee accepts the quote.

The amount is: (a) the present value, on the termination date, of the rentals (excl. VAT and maintenance) that would fall due after it, discounted at the contract rate; plus (b) an early-termination penalty of 10.00% of that present value; plus VAT on (a) and (b); plus (c) the arrears, including charges. The lessor gives no credit for the resale value of the goods, which it keeps.

The quote remains valid for the period stated on it. On acceptance the amount is recalculated at the contract rate using the acceptance date and the rentals then remaining, including rentals already invoiced or prepaid; the acceptance acknowledges that recalculated amount. Superseded invoices are credited and prepaid cash is allocated separately, with excess recorded for reconciliation and refund. The rentals falling due after the termination date are cancelled, (a) and (b) are invoiced on one tax invoice due on the termination date, and the goods are returned and inspected under clause 9.8 (the end-of-term invoice for usage and damage follows separately).

9.11 Breach and remedies

The lessee is in default if it: fails to pay any amount on its due date; breaches any other term and does not remedy the breach within 7 days of the lessor's written notice; is placed under provisional or final sequestration, liquidation or deregistration, commits an act of insolvency, or offers a compromise to its creditors; allows a judgment against it to stay unsatisfied for 7 days; allows the goods to be attached; or gave materially false information to obtain this lease. A default by the lessee's surety is a default by the lessee. Business rescue proceedings are not of themselves a default; while they last, section 133 of the Companies Act, 2008 limits the lessor's remedies.

On a default the lessor may, without losing any other right: (a) claim every amount due and enforce this agreement; or (b) cancel this agreement, recover the goods (through a court order if the lessee does not return them voluntarily) and claim the arrears and, as damages, the present value on the cancellation date of the rentals in section 6 still to fall due for the rest of the term, discounted at the contract rate, together with the reasonable costs of recovering, storing, insuring, valuing and selling the goods and the legal costs on the scale as between attorney and own client, collection commission and tracing costs.

The lessor sells or lets the recovered goods for the best price reasonably obtainable, measured against an independent valuation. The net proceeds (after the costs deducted from them) are credited to the lessee's account when received. Any surplus is refunded to the lessee; the lessee pays any shortfall on demand.

9.12 Default interest and collection costs

The lessee pays default interest on every amount not paid on its due date, from the day after the due date until it is paid, at the contract rate plus 2.00% a year, calculated daily on a 365-day year and charged monthly. Default interest is not charged on default interest or on fees.

A collection fee of R 450.00 is charged once for each rental not paid in full by the end of its due date.

Each payment is applied first to default interest, then to collection fees and other charges, then to the rentals and other amounts due, oldest first, and then to amounts not yet due.

9.13 Cession and assignment

The lessor may cede its rights, delegate its obligations and transfer ownership of the goods to anyone, including a financier, without the lessee's consent, provided the lessee's rights under this agreement are not reduced. On request the lessee acknowledges the cession in writing and pays the cessionary.

The lessee may not cede, assign or delegate any right or obligation under this agreement, or sublet the goods, without the lessor's prior written consent.

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9.14 Domicilium and notices

Each party chooses as its address for legal process and notices (domicilium citandi et executandi): the lessor, its registered office in section 1; the lessee, its address in section 2. A party may change its address by written notice to another physical address in the Republic.

Notices must be in writing and may be delivered by hand to the chosen address or sent by email to an address the receiving party has given for notices. A notice delivered by hand is presumed received on delivery, and one sent by email on the first business day after it is sent.

A written notice actually received is valid even if it was not given as this clause provides.

9.15 General

This agreement is the whole agreement between the parties about its subject. A variation, cancellation by agreement or waiver binds a party only if in writing and signed by it. A relaxation or indulgence is not a waiver. If a provision is invalid, the rest of the agreement stands. South African law governs this agreement.

The lessee consents to the jurisdiction of the Magistrates' Court under section 45 of the Magistrates' Courts Act, 1944, even if the amount claimed exceeds that court's jurisdiction; the lessor may instead sue in any other competent court. A certificate signed by any manager of the lessor, whose appointment need not be proved, stating the amount the lessee owes is prima facie proof of that amount.

The lessor processes the personal information of the lessee and its representatives under the Protection of Personal Information Act, 2013, to conclude, administer and enforce this agreement, and may share it for those purposes with its service providers, insurers, the supplier, its funders and any cessionary.

This agreement may be signed electronically and in counterparts, as the Electronic Communications and Transactions Act, 2002 allows.

9.16 Maintenance by the lessor and the maintenance fund

In return for the maintenance charge of R 4,500.00 a month excl. VAT (escalating by 6.50% on each anniversary of the commencement date; Annexure A and section 6), the lessor arranges and pays for the maintenance of the goods during the term and any extension: the services the manufacturer schedules, and the repair or replacement of parts that fail through fair wear and tear within the contracted usage.

Maintenance does not include: fuel, and oil and fluid top-ups between services; cleaning; damage from accident, misuse, overloading, neglect or operator error; work needed because the goods were not presented for a scheduled service or were used beyond the contracted usage; alterations; or anything the insurance under clause 9.5 covers or should have covered. The lessee pays for that work itself.

The lessee must present the goods for every scheduled service, report any fault to the lessor promptly, and stop using the goods if using them could make a fault worse.

The maintenance part of each invoiced rental (excl. VAT) is credited to a maintenance fund kept for this lease, and each maintenance claim the lessor pays under clause 9.17 is debited to it. The fund may run into deficit during the term; that does not reduce the maintenance the lessor arranges. The lessee may see the fund's balance through the lessor's portal. At the end of the term, whatever the outcome under clause 9.9, the fund is settled: a surplus is refunded to the lessee, and a deficit is billed to the lessee, plus VAT, on the end-of-term tax invoice (clause 9.8).

9.17 Maintenance claims and approved providers

Maintenance is done only by providers the lessor approves. The lessee should ask the lessor before work starts whether it is maintenance under clause 9.16. The provider invoices the work; the lessor approves the claim against that invoice and pays the provider directly. The lessee does not pay the provider for approved maintenance.

The lessor may reject a claim for work that is not maintenance under clause 9.16 or that was not done by an approved provider; the lessee then pays for that work. No claim is accepted for work done after the lease ends, or once the maintenance fund has been settled at the end of the term.

10. SIGNATURES

For the lessee, TEST Earthmoving (Pty) Ltd

_____ _____

TEST Director
Authorised signatory

Date

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For the lessor, Test Asset Lender (Pty) Ltd

Name:
Authorised signatory

Date

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